ANOTHER
EVENTS ATTIRE MARKETPLACE
MOMENT

# TERMS AND CONDITIONS OF USE

· Effective Date: 2025 · Johannesburg, South Africa www.anothermoment.co.za · info@anothermoment.co.za

*IMPORTANT — PLEASE READ CAREFULLY. By accessing or using the Another Moment platform, creating an account, or listing any item, you confirm that you have read, understood, and agree to be legally bound by these Terms and Conditions in their entirety. If you do not agree to these Terms, you must not use this platform.*

*"Your Dress Deserves More than One Moment"*

# 1. Definitions

In these Terms and Conditions, the following words and expressions shall have the meanings assigned to them below:

| Term | Meaning |
|---|---|
| "Another Moment" / "Platform" / "we" / "us" / "our" | Another Moment (Pty) Ltd, a company registered in South Africa, operating the online listing marketplace at www.anothermoment.co.za. |
| "User" / "you" / "your" | Any person who accesses, registers on, browses, or uses the Platform in any capacity, whether as a Seller, Buyer, or visitor. |
| "Seller" | A User who registers an account and publishes one or more Listings on the Platform for the purpose of selling formal attire. |
| "Buyer" | A User who browses the Platform and contacts a Seller with the intention of purchasing a listed item. |
| "Listing" | A formal attire item advertised for sale on the Platform by a Seller, including all associated photographs, descriptions, and pricing information. |
| "Listing Fee" | The once-off, non-refundable fee of R49 (South African Rand) payable by the Seller to Another Moment to publish a single Listing on the Platform. |
| "Transaction" | Any agreement, sale, exchange, or arrangement made between a Seller and a Buyer in relation to a listed item, conducted entirely outside of and independent from the Platform. |
| "Content" | All photographs, text, descriptions, pricing information, and other material uploaded or submitted by a User to the Platform. |
| "Prohibited Item" | Any item that Another Moment expressly prohibits from being listed on the Platform, as set out in Clause 6 of these Terms. |
| "ECTA" | The Electronic Communications and Transactions Act 25 of 2002, as amended from time to time. |
| "CPA" | The Consumer Protection Act 68 of 2008, as amended from time to time. |
| "POPIA" | The Protection of Personal Information Act 4 of 2013, as amended from time to time. |

# 2. Nature of the Platform and Role of Another Moment

*CRITICAL NOTICE: Another Moment is a listing platform only. We are not a retailer, reseller, agent, auctioneer, courier, escrow service, or financial institution. We play no role in any Transaction between a Buyer and a Seller. We do not own, hold, inspect, authenticate, store, ship, or handle any item listed on the Platform.*

## 2.1 Platform Role

**2.1.1** Another Moment provides a digital space where Sellers may advertise formal attire for sale. The Platform facilitates discovery and initial connection between Sellers and Buyers.

**2.1.2** Another Moment is not a party to any Transaction between a Seller and a Buyer. The contract of sale formed upon agreement between a Seller and a Buyer is entirely between those two parties. Another Moment has no rights, obligations, or liabilities under any such contract.

**2.1.3** Another Moment does not process, hold, facilitate, guarantee, or escrow any payments made between Buyers and Sellers. The only financial transaction between a User and Another Moment is the payment of the Listing Fee.

**2.1.4** Another Moment does not arrange, coordinate, or assume responsibility for the collection, delivery, courier, or transfer of any item sold or agreed to be sold through the Platform.

**2.1.5** Another Moment does not inspect, verify, authenticate, or certify the quality, condition, authenticity, ownership, or suitability of any item listed on the Platform.

**2.1.6** Nothing in the operation of the Platform creates any employment, partnership, joint venture, agency, franchise, or fiduciary relationship between Another Moment and any User.

## 2.2 User Responsibility

**2.2.1** Users acknowledge that all Transactions are concluded at their own risk. Another Moment strongly encourages all Users to exercise independent due diligence before entering into any Transaction.

**2.2.2** Sellers are solely responsible for the accuracy, completeness, and lawfulness of their Listings, the condition and ownership of items listed, and the fulfilment of any Transaction they enter into.

**2.2.3** Buyers are solely responsible for verifying item details, conducting their own inspections, and arranging safe payment and collection of items.

# 3. Eligibility and Account Registration

## 3.1 Eligibility

**3.1.1** To register an account and use the Platform as a Seller, you must be at least 18 years of age. Persons under 18 may only use the Platform as Buyers with the consent and supervision of a parent or legal guardian, who accepts full responsibility for their use of the Platform.

**3.1.2** By registering an account, you represent and warrant that all information you provide is accurate, current, and complete, and that you have the legal capacity to enter into binding agreements under South African law.

**3.1.3** Another Moment reserves the right to refuse registration to any person or to terminate any account, at its sole discretion, without notice and without liability.

## 3.2 Account Security

**3.2.1** You are solely responsible for maintaining the confidentiality of your account credentials. You must not share your login details with any other person.

**3.2.2** You are solely responsible for all activity that occurs under your account, whether or not authorised by you. Another Moment shall not be liable for any loss or damage arising from unauthorised access to your account.

**3.2.3** You must notify Another Moment immediately at help@anothermoment.co.za if you become aware of any unauthorised use of your account or any breach of security.

**3.2.4** One account per person is permitted. Creating duplicate or multiple accounts is a violation of these Terms and may result in the suspension or permanent termination of all associated accounts.

## 3.3 Account Termination

**3.3.1** Another Moment reserves the right to suspend, restrict, or permanently terminate your account and remove any or all of your Listings at any time, with or without notice, if Another Moment reasonably believes that you have violated these Terms, any applicable law, or have engaged in conduct that is harmful to the Platform, other Users, or third parties.

**3.3.2** Upon termination of your account, no refund of any Listing Fees paid will be issued.

**3.3.3** You may close your account at any time by contacting info@anothermoment.co.za. Account closure does not entitle you to a refund of any Listing Fees already paid.

# 4. Listing Fees, Payment, and Refund Policy

## 4.1 The Listing Fee

**4.1.1** To publish a Listing on the Platform, a Seller must pay a once-off, non-refundable Listing Fee of R49 (South African Rand) per item. This is the only fee payable by a User to Another Moment.

**4.1.2** The Listing Fee covers the publication of one (1) Listing for a period of twelve (12) months from the date of publication.

**4.1.3** Another Moment does not charge commission on any Transaction. The full sale price of any item is agreed and retained entirely between the Seller and Buyer.

**4.1.4** Another Moment reserves the right to amend the Listing Fee at any time. Any change in fees will be communicated to registered Users via email at least fourteen (14) days before taking effect. Listings already published will not be retrospectively affected by a fee change.

## 4.2 Payment Methods

**4.2.1** Listing Fees are payable via the payment methods made available on the Platform at the time of listing, which may include credit card, debit card, instant EFT, SnapScan, and PayFast.

**4.2.2** A Listing will only be published upon successful confirmation of payment. Another Moment accepts no responsibility for payment failures arising from a User's bank, card issuer, or payment provider.

## 4.3 No Refunds

**The Listing Fee is strictly non-refundable under all circumstances, including but not limited to: the item not selling during the listing period; the Seller deciding to withdraw the Listing; the Seller's account being suspended or terminated due to a violation of these Terms; technical difficulties experienced by the Seller; or dissatisfaction with the Platform's performance.**

# 5. Listing Standards and Seller Obligations

## 5.1 Permitted Categories

Only the following categories of formal attire may be listed on the Platform:

| | |
|---|---|
| Wedding dresses and bridal gowns | Traditional and cultural gowns and suits |
| Formal suits (wedding, matric, gala) | Bridal party attire |
| Evening gowns and cocktail dresses | Matric dance dresses and suits |

## 5.2 Listing Accuracy and Honesty

**5.2.1** Sellers must ensure that all Listings are accurate, complete, and not misleading. The Listing must represent the actual item being sold and must include: clear photographs of the actual item (not stock images); an accurate written description; the item's size (in South African sizing); the item's condition (New, Like New, Good, or Fair); the asking price in South African Rand; and whether the item is for sale only.

**5.2.2** A minimum of three (3) clear photographs must be uploaded per Listing. At least one (1) photograph must show the item being worn on a person or mannequin.

**5.2.3** Sellers must fully and prominently disclose all known defects, alterations, stains, repairs, damage, or missing embellishments. Failure to disclose known defects constitutes misrepresentation and is a material breach of these Terms.

**5.2.4** Sellers may only list items that they own outright and have the legal right to sell. Listing items that belong to another person, are subject to a lien, are stolen, or are otherwise not freely available for sale is strictly prohibited and may be reported to law enforcement authorities.

**5.2.5** The Seller is solely responsible for ensuring that their Listing and the sale of their item complies with all applicable South African laws and regulations.

## 5.3 Listing Duration and Management

**5.3.1** Each Listing remains active for twelve (12) months from the date of publication.

**5.3.2** Once an item has been sold or is no longer available, the Seller must update the Listing status to 'Sold' within forty-eight (48) hours of the Transaction being concluded.

**5.3.3** Another Moment reserves the right to remove, edit, or reclassify any Listing that does not comply with these Terms or Another Moment's listing standards, without notice and without refund of the Listing Fee.

**5.3.4** Another Moment reserves the right to remove any Listing that has received no Seller engagement or update for a period of ninety (120) consecutive days.

# 6. Prohibited Items and Prohibited Conduct

## 6.1 Prohibited Items

The following items are strictly prohibited from being listed on the Platform. Another Moment will remove any such Listing immediately and may permanently ban the associated account:

**PROHIBITED: Counterfeit, replica, or unauthorised copies of branded or designer items · Stolen goods or items to which the Seller does not hold clear title · Casual or everyday clothing not qualifying as formal attire · Undergarments, swimwear, or intimate apparel · Items in a condition so poor as to be unwearable or unsaleable · Items that violate any applicable South African law or regulation · Any item not falling within the permitted categories set out in Clause 5.1.**

## 6.2 Prohibited Conduct

The following conduct is strictly prohibited on the Platform and constitutes a material breach of these Terms. Another Moment operates a zero-tolerance policy in respect of the following:

- Posting false, misleading, deceptive, or fraudulent Listings or information.
- Impersonating another person, entity, or Another Moment.
- Engaging in any form of scam, fraud, or dishonest dealing with another User.
- Harassing, threatening, abusing, or intimidating any User or Another Moment representative.
- Posting offensive, discriminatory, obscene, or defamatory content.
- Creating multiple accounts to circumvent a suspension or ban.
- Interfering with, disrupting, or attempting to gain unauthorised access to the Platform or its systems.
- Using automated bots, scrapers, or other tools to access the Platform without Another Moment's express written consent.
- Using the Platform for any unlawful purpose, including money laundering, fraud, or any activity that violates South African law.
- Attempting to redirect other Users away from the Platform to conduct transactions that circumvent the Listing Fee process.
- Manipulating or artificially inflating reviews, ratings, or reports.

## 6.3 Consequences of Violations

**6.3.1** Another Moment applies a three-strike enforcement policy for minor infractions. On a first violation, a formal warning will be issued. On a second violation, the Listing or account may be temporarily suspended. On a third violation, the account will be permanently banned.

**6.3.2** For serious violations — including but not limited to fraud, listing stolen goods, impersonation, or harassment — Another Moment reserves the right to immediately and permanently ban the User's account without warning, without refund, and to report the matter to the South African Police Service (SAPS) or other relevant authorities.

**6.3.3** Another Moment reserves the right to cooperate with law enforcement authorities and to disclose User information where required to do so by law or where Another Moment reasonably believes that a criminal offence has been committed.

# 7. Transactions Between Buyers and Sellers

*Another Moment is not involved in, does not supervise, and expressly disclaims all responsibility for Transactions between Buyers and Sellers. All of the following are conducted entirely between the Buyer and the Seller, at their own risk and discretion.*

## 7.1 Direct Transactions

**7.1.1** All negotiations, price agreements, payment arrangements, collection or delivery logistics, and any other aspects of a Transaction are conducted directly between the Buyer and the Seller, entirely outside of and independent from the Platform.

**7.1.2** Another Moment does not endorse, verify, or vouch for any Seller or Buyer on the Platform. The presence of a Listing on the Platform does not constitute any form of approval, recommendation, or warranty by Another Moment of the item, the Seller, or the Transaction.

**7.1.3** Another Moment strongly recommends that both Buyers and Sellers: keep all communication within the Platform's messaging system until both parties are satisfied with the arrangement; agree on all terms of a Transaction in writing before any payment is made; meet in a safe, public place for any in-person inspection or handover; and use traceable, secure payment methods such as EFT, SnapScan, or PayFast.

## 7.2 Payments Between Users

**7.2.1** Another Moment does not process, hold, transfer, or guarantee any payment made between a Buyer and a Seller. Another Moment has no access to and no responsibility for any funds exchanged between Users.

**7.2.2** Sellers are strongly advised never to release an item before payment has been received and verified as cleared in their account. Screenshots or notifications of payment are not confirmation of cleared funds.

**7.2.3** Buyers are strongly advised never to pay for an item before inspecting it in person, where possible. Where in-person inspection is not possible, Buyers should request a live video call with the Seller to view the item before payment.

**7.2.4** Sellers and Buyers are strongly advised against accepting or making payment via cash-in-transit, postal orders, international money transfers, or payment services they are unfamiliar with.

## 7.3 Disputes Between Users

**7.3.1** Another Moment is not a mediator, arbitrator, or dispute resolution body. Any dispute arising between a Buyer and a Seller from a Transaction is strictly between those parties and must be resolved between them directly.

**7.3.2** Another Moment may, entirely at its own discretion and without any obligation to do so, assist in resolving disputes by removing fraudulent Listings or suspending bad-faith accounts. Any such action does not constitute legal liability on Another Moment's part and does not make Another Moment a party to the dispute.

**7.3.3** Users who have been defrauded or who have suffered a criminal act in connection with a Transaction are strongly encouraged to report the matter to the SAPS and to the Platform via help@anothermoment.co.za. Another Moment will cooperate with law enforcement where legally required.

# 8. Disclaimer of Warranties and Limitation of Liability

## 8.1 Platform Provided "As Is"

**8.1.1** The Platform and all its features are provided on an "as is" and "as available" basis, without any warranties of any kind, whether express, implied, or statutory. Another Moment makes no representations or warranties regarding the accuracy, reliability, completeness, or timeliness of any Content on the Platform.

**8.1.2** Another Moment does not warrant that the Platform will be uninterrupted, error-free, secure, or free from viruses or other harmful components. Another Moment will not be liable for any loss or damage arising from Platform downtime, technical errors, or unavailability.

## 8.2 No Warranty on Items

**8.2.1** Another Moment makes no representations, warranties, or guarantees regarding the quality, condition, authenticity, fitness for purpose, safety, or legality of any item listed on the Platform. All such warranties, to the extent permitted by law, are expressly excluded.

**8.2.2** Buyers acknowledge that they are purchasing items from private individual Sellers, and that the CPA's implied warranty provisions as they apply to suppliers in the ordinary course of business may not apply to all private-party Transactions. Buyers are encouraged to satisfy themselves as to the condition and suitability of any item before completing a Transaction.

## 8.3 Limitation of Liability

**TO THE FULLEST EXTENT PERMITTED BY SOUTH AFRICAN LAW, ANOTHER MOMENT SHALL NOT BE LIABLE FOR: ANY DIRECT, INDIRECT, INCIDENTAL, SPECIAL, CONSEQUENTIAL, OR PUNITIVE DAMAGES ARISING FROM YOUR USE OF OR INABILITY TO USE THE PLATFORM; ANY LOSS ARISING FROM A TRANSACTION BETWEEN USERS; FRAUD, MISREPRESENTATION, OR CRIMINAL CONDUCT BY ANY USER; LOSS OF DATA, REVENUE, PROFITS, OR GOODWILL; OR ANY OTHER MATTER RELATING TO THE PLATFORM, EVEN IF ANOTHER MOMENT HAS BEEN ADVISED OF THE POSSIBILITY OF SUCH DAMAGES.**

**8.3.1** In no event shall Another Moment's total aggregate liability to any User exceed the amount of the Listing Fee paid by that User in the twelve (12) months immediately preceding the event giving rise to the claim.

**8.3.2** Nothing in these Terms excludes or limits Another Moment's liability for death or personal injury caused by its own gross negligence, or for fraud, or for any other liability that cannot be limited or excluded by law.

# 9. Indemnity

**9.1** You agree to indemnify, defend, and hold harmless Another Moment, its directors, officers, employees, agents, and representatives from and against any and all claims, demands, actions, losses, damages, costs, penalties, fines, and expenses (including reasonable legal fees) arising out of or relating to:

- Your use of or access to the Platform;
- Any Listing you post on the Platform;
- Any Transaction you enter into with another User;
- Any violation by you of these Terms and Conditions;
- Any violation by you of any applicable South African law or regulation;
- Any claim by a third party arising from your Content or your conduct on the Platform;
- Any misrepresentation made by you, whether to Another Moment or to another User.

**9.2** This indemnity shall survive the termination or expiration of your account and these Terms.

# 10. Intellectual Property

**10.1** The Another Moment name, logo, brand identity, website design, platform architecture, and all associated intellectual property are owned exclusively by Another Moment and are protected under South African and international intellectual property law. You may not use, copy, reproduce, modify, distribute, or commercially exploit any of Another Moment's intellectual property without prior written consent.

**10.2** By uploading Content to the Platform, you grant Another Moment a non-exclusive, royalty-free, worldwide licence to use, display, reproduce, and distribute that Content on the Platform and in connection with Another Moment's marketing and promotional activities, including on social media platforms.

**10.3** You represent and warrant that you own or have the necessary rights to all Content you upload, and that such Content does not infringe the intellectual property rights, privacy rights, or any other rights of any third party.

**10.4** Another Moment reserves the right to remove any Content that it believes, in its sole discretion, infringes a third party's intellectual property rights.

# 11. Privacy and Personal Information

**11.1** Another Moment collects and processes personal information in compliance with the Protection of Personal Information Act 4 of 2013 (POPIA). By using the Platform, you consent to Another Moment collecting, storing, and using your personal information for the purposes of operating the Platform, processing Listing Fees, communicating with you, and improving the Platform's features and services.

**11.2** Another Moment will not sell, rent, or share your personal information with third parties for their own marketing purposes without your express consent.

**11.3** Another Moment implements reasonable technical and organisational measures to protect your personal information from unauthorised access, disclosure, alteration, or destruction. However, no method of data transmission or storage is completely secure, and Another Moment cannot guarantee absolute security.

**11.4** You have the right, under POPIA, to access, correct, or request the deletion of your personal information held by Another Moment. To exercise these rights, please contact hello@anothermoment.co.za.

**11.5** Another Moment uses cookies and similar tracking technologies on the Platform. By using the Platform, you consent to the use of cookies in accordance with Another Moment's Privacy Policy, available on the Platform.

# 12. Compliance with ECTA

In compliance with the Electronic Communications and Transactions Act 25 of 2002, the following information is disclosed:

| | |
|---|---|
| **Full legal name:** | Another Moment (Pty) Ltd |
| **Trading name:** | Another Moment |
| **Registration number:** | 2021 / 603198 / 07 |
| **Physical address:** | Johannesburg, Gauteng, South Africa |
| **Email address:** | info@anothermoment.co.za |
| **Website:** | www.anothermoment.co.za |

# 13. Amendments to These Terms

**13.1** Another Moment reserves the right to amend, update, or replace these Terms and Conditions at any time and for any reason, at its sole discretion.

**13.2** Material changes to these Terms will be communicated to registered Users via email to the address associated with their account, at least fourteen (14) days before the changes take effect.

**13.3** Your continued use of the Platform after the effective date of any amended Terms constitutes your acceptance of those amended Terms. If you do not accept the amended Terms, you must cease using the Platform and close your account.

**13.4** The most current version of these Terms will always be available on the Platform at www.anothermoment.co.za/terms.

# 14. Governing Law and Jurisdiction

**14.1** These Terms and Conditions are governed by and construed in accordance with the laws of the Republic of South Africa. The Consumer Protection Act 68 of 2008, the Electronic Communications and Transactions Act 25 of 2002, and the Protection of Personal Information Act 4 of 2013 apply to these Terms to the extent applicable.

**14.2** You agree to submit to the exclusive jurisdiction of the South African courts for the resolution of any dispute arising out of or in connection with these Terms or your use of the Platform.

**14.3** In the event of any dispute, the parties agree to first attempt to resolve the matter informally by contacting Another Moment at hello@anothermoment.co.za. If the dispute cannot be resolved informally within thirty (30) days, either party may pursue the matter through the appropriate South African legal channels.

# 15. General Provisions

**15.1 Entire Agreement:** These Terms, together with the Privacy Policy and any other policies published on the Platform, constitute the entire agreement between you and Another Moment with respect to your use of the Platform and supersede all prior agreements, representations, and understandings.

**15.2 Severability:** If any provision of these Terms is found by a court of competent jurisdiction to be invalid, unlawful, or unenforceable, that provision shall be deemed severed from the remaining Terms, which shall continue in full force and effect.

**15.3 No Waiver:** Another Moment's failure to enforce any right or provision of these Terms shall not constitute a waiver of that right or provision. Any waiver of a breach of these Terms shall not be construed as a waiver of any subsequent breach.

**15.4 Force Majeure:** Another Moment shall not be liable for any failure or delay in the performance of its obligations under these Terms arising from circumstances beyond its reasonable control, including but not limited to power failures, internet outages, natural disasters, acts of government, or civil unrest.

**15.5 Assignment:** Another Moment may assign its rights and obligations under these Terms without your consent. You may not assign your rights or obligations under these Terms without Another Moment's prior written consent.

**15.6 Headings:** Section headings are for convenience only and do not affect the interpretation of these Terms.

## 16. Acceptance of Terms

*By creating an account, paying a Listing Fee, publishing a Listing, or otherwise using the Platform in any way, you confirm that: (a) you have read these Terms and Conditions in full; (b) you understand them; and (c) you agree to be legally bound by them. If you do not agree, you must immediately cease using the Platform.*